Open Office Hours:
Tue & Thu
1:30-2:30

Legal Realism

Actus Reus

Part 2: Causation

“Result” v “Act” Offenses

Causation only comes into play where a crime requires a specific result.

- **Sexual Assault**: sex with a person without their consent (no *result* required).
- **Battery**: an unlawful application of force to the person of another ***resulting*** *in either bodily injury or an offensive touching*.

The Traditional Approach

The defendant's act must be:

1. the "but for" cause of forbidden result (D's act was necessary to the result); and

2. the "proximate" cause of forbidden result (forbidden result was a *reasonably foreseeable* consequence of D's act).

“But For” Legal Fictions

Two people shoot a third person through the head at the same time. Factually speaking, are either one of them the “but for” cause of the death?

How do you think courts resolve this question? Would it be more just to say that both are a “but for” cause or that neither is a “but for” cause?

Under the common law, proximate cause relies on the “reasonable person” standard

People v. Acosta

People v. Arzon

“But for” cause…

- Needn't be the only cause. It only has to be *necessary* to the result.

People v. Warner Lambert Co.

Variations on But-for Cause

But for?

- What if the firefighter was struck by a stray bullet from an unrelated shooting?
- What if the firefighter died of a massive heart attack brought on by fighting the first fire instead of smoke inhalation after being caught between fires?
- What if there is 50% chance the massive heart attack started before the firefighter entered the fire?

Attempting Reconciliation

Can we reconcile *Arzon*, *Acostan* & *Warner-Lambert*?

One Possibility:

Character-Based Assessment

Other Possibilities:

Alternative Remedy Distinction

Overdeterrence Distinction

Legal Causation

- **How we say causation doctrine works.** A person should not be held liable for a harm unless they actually *caused* that harm. Then, and only then, can we say they deserve punishment.
- **How it works in practice.** If someone behaves immorally, then is it more likely that people will think they are the cause of a harm around them and thus should be punished for it.

The Model Penal Code

MODEL PENAL CODE SECTION 2.03. Causal relationship between conduct and result ...

1. Conduct is the cause of a result when:

   (a) it is an antecedent but for which the result in question would not have occurred; and

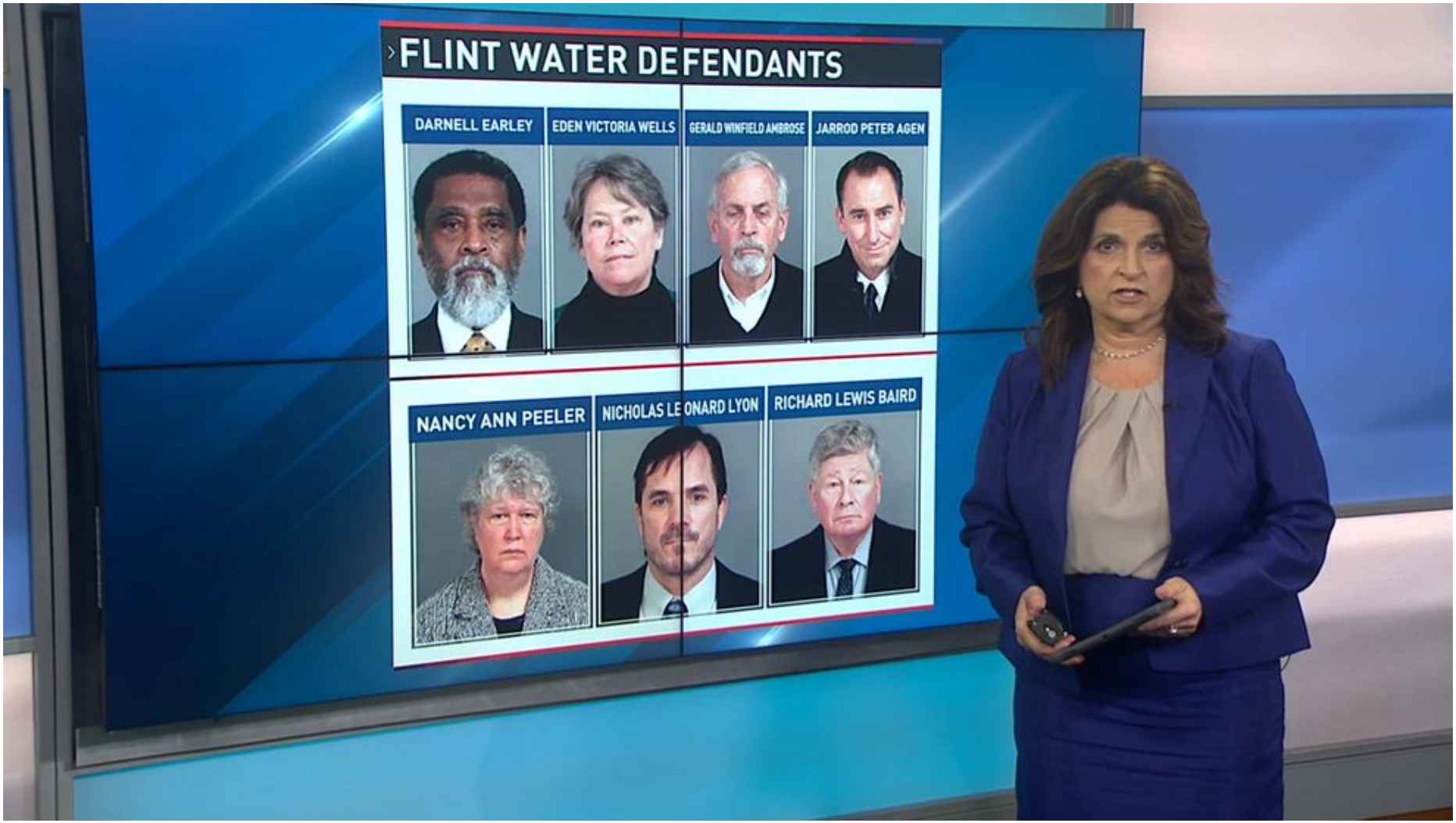
(2 & 3) (b) ... the actual result ... is not too remote or accidental in its occurrence to have a [just] bearing on the actor's liability or on the gravity of his offense.

PG&E and The Camp Fire

BP Deepwater Horizon

Peanut Corporation of America

Flint Water Contamination



Causing Catastrophe (PA)
Widespread Injury or Damage (NJ)

Revised 4/18/05

CAUSING OR RISKING WIDESPREAD INJURY OR DAMAGE (ANY MANNER)
N.J.S.A. 2C:17-2(a)(1)&(2).

Count _____ of the indictment charges the defendant with causing widespread injury or damage in violation of a statute which provides as follows:

> A person who, purposely or knowingly, unlawfully causes widespread injury or damage in any manner commits a crime. . .

In order for the defendant to be found guilty of causing widespread injury or damage, the State must prove the following elements beyond a reasonable doubt:

(1) that the defendant unlawfully caused[1] widespread injury or damage in any manner;

and

(2) that the defendant acted purposely or knowingly.[2]

Risking Catastrophe (PA)
Widespread Injury or Damage (NJ)

Revised 3/21/05

RECKLESSLY RISKING WIDESPREAD INJURY OR DAMAGE
(N.J.S.A. 2C:17-2c)

Count _____ of the indictment charges the defendant with recklessly creating a risk of widespread injury or damage in violation of a statute which provides as follows:

> A person who recklessly creates a risk of widespread injury or damage commits a crime. . .even if no such injury or damage occurs.

In order for the defendant to be found guilty of recklessly creating a risk of widespread injury or damage, the State must prove the following elements beyond a reasonable doubt:

(1) that the defendant created a risk of widespread injury or damage; and

(2) that the defendant acted recklessly.

Climate Accountability

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